

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SPAIN

Complete Community Opposition How-To

This guide uses the Spanish terms you'll actually run into — the EIA and its DIA, the autonomous communities, the recurso contencioso-administrativo, the acción popular of Law 27/2006 — and explains each in plain words the first time. Spain is decentralised: the seventeen autonomous communities and the municipalities run most permitting, so check locally.

INTRODUCTION & FRAMEWORK

On the beach at El Algarrobico, in the Cabo de Gata-Níjar natural park in Almería, stands a 21-storey, 411-room hotel, fourteen metres from the sea, that a court has ruled illegal — over and over again. Building started in 2003 on land the park's own management plan had classed as protected and non-developable, land the **Ley de Costas** (coastal law) shields with a protection easement. In 2005, **Greenpeace, Ecologistas en Acción, and Salvemos Mojácar** took it to court; in early 2006 they won a precautionary suspension of the works. What followed is one of the longest legal sagas in Spanish environmental history: something like **fifty court rulings**, more than a dozen from the **Tribunal Supremo** (the Supreme Court), all confirming the hotel is illegal because it sits inside a protected park and violates the coastal law.

Greenpeace, Ecologistas en Acción, and Salvemos Mojácar, who won ruling after ruling against the illegal El Algarrobico hotel, drew on two features Spain gives communities to build on. First, a mandatory **environmental impact assessment (EIA)** — *evaluación de impacto ambiental* — with a compulsory **public-information period** for large projects, producing the **DIA** (*declaración de impacto ambiental*), the environmental statement the whole approval rests on; protest, petition, and litigation are lawful. Second, an unusually open door to the courts: under the **Aarhus Convention** and its Spanish statute, **Law 27/2006**, a qualifying environmental association gets a form of **acción popular** — the standing to take an environmental decision to court *without* having to show it was personally harmed. That's rare, and it's powerful. But these tools have real limits, and this guide states them plainly. Environmental groups won the El Algarrobico argument comprehensively — some fifty rulings, more than a dozen from the **Tribunal Supremo** — and yet the hotel is *still standing*, because the town hall of Carboneras refused to comply and the regional government dragged its feet for two decades; only in **2025** did the national Government move to **expropriate** the land to unblock demolition. So the lesson isn't that the law fails; it's that in Spain winning in court is often not the end but the middle — the argument is won on the merits, and then it takes persistence, escalation, and political pressure to make the win real.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major Spanish project needs its **environmental assessment and DIA**; it needs the autonomous community's and the town hall's permits; where it touches the coast, a protected park, or a Natura 2000 site, it runs into hard protective law; and it needs public acceptance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the assessment is flawed or the project sits on protected land — the coast, a park, a Natura 2000 site — the courts genuinely bite**, and the acción popular puts an association in the courtroom. El Algarrobico shows the legal argument can be won completely.
- **But winning in court isn't the same as stopping the bulldozers**. A precautionary suspension (*medida cautelar*) can halt works *now*; a final win may still take years to enforce against a non-compliant town hall — so plan for persistence and pressure, not just a judgment.
- **If the process was clean and the autonomous community backs the project, it's harder** — you fight on the movement, the local politics, and public opinion too.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the public-information period, the acción popular, the precautionary suspension, the coastal and protected-area law — and **run every front at once**: the documents, the objection, the courts, the movement, the press. That's how El Algarrobico was won on the law.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Spain is decentralised, and **most fights are won or lost at the autonomous-community and municipal level, not in Madrid**. The **autonomous community** (Andalusia, Catalonia, Galicia, Aragón, and so on) usually runs the environmental assessment and issues the DIA and the sectoral permits; the **municipality** (the *ayuntamiento*) controls local planning and the building licence. The central State handles matters of state competence — the coast (through the **Ley de Costas**), some infrastructure, and the framework laws. Know which body holds your decision, and aim there.

How a Project Moves — and Where You Jump In

The assessment and the public-information period. For a large project the developer's study goes out for a **compulsory public-information period** (*información pública*). *Your opening* — and it's the one that arms every later step: file substantive written objections (*alegaciones*) now. The paperwork you file here becomes the record a court later reviews.

The DIA. The environmental authority issues the **declaración de impacto ambiental**. *Your opening*: a DIA built on a defective study, or a favourable DIA that ignored the objections, can be challenged.

The permits. The autonomous community's authorisation and the town hall's building licence follow. *Your opening*: a licence for a project on protected or coastal land — as at El Algarrobico — is unlawful and can be attacked, and the works suspended.

Construction. *Your opening*: works without valid permits, or in breach of the DIA's conditions, can be stopped by a court.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the DIA not issued or under challenge, the licence not granted, the financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and, often, public and EU money with their own

environmental rules.

Who's Supposed to Be Watching

Each is an ally or an arena. The **autonomous community's environmental authority** runs the assessment and can be pressed, publicly, to enforce the law. The **contencioso-administrativo courts** — the administrative courts — review the legality of permits and the DIA, up through the regional high courts (**TSJ**) to the **Tribunal Supremo**, and can suspend and annul. The **Defensor del Pueblo** (Ombudsman) and the regional ombudsmen take complaints about official conduct. The **Fiscalía de Medio Ambiente** (the environmental prosecutor) handles environmental crime. And Spain's **strong environmental movement, its associations with acción popular, and a free press** are the forces that reach furthest — the coalition that has kept El Algarrobico in the courts for twenty years.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the assessment is flawed, whether the project sits on protected or coastal land, and how set the autonomous community and town hall are on it.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Alegaciones in the public-information period	15–35%	during assessment	low	On record; conditions or a redo
Precautionary suspension (medida cautelar)	30–55%	weeks–months	low–mod	Works halted while the case runs
Court challenge (contencioso → Tribunal Supremo)	30–55%	1–5 yr	mod	DIA or licence annulled
Coastal / protected-area law	35–60%	varies	low–mod	Project ruled unlawful (El Algarrobico)
Movement + media	30–55%	months–yr	low	Political cost; project reconsidered
Everything together (protected land, public watching)	40–65%	1–5 yr	mod	Suspended, annulled, delayed
Everything together (clean process, community-backed)	20–45%	1–5 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are the **courts** — especially the **precautionary suspension** — and the **coastal and protected-area law**, backed by the acción popular, the movement, and the press. El Algarrobico shows the ceiling (a hotel ruled comprehensively illegal) and the floor (enforcement blocked for twenty years). The honest lesson: win the legal argument early, halt the works fast, and be ready to fight for years to make the win real.

*On cost: objecting and organising are cheap, and the **acción popular** means a qualifying association can carry the environmental case to court without proving personal harm — a genuinely unusual advantage.*

Team up with one.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this DIA, this flaw, this protected line — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over what's protected — the **coastal protection easement** (Ley de Costas), a natural park, a **Natura 2000 / Red Natura** site, protected species, a water-catchment. **Protected and coastal land is Spain's sharpest legal tripwire**, so this map is your most important document.
- 3. What stage is it at, and what's the next deadline?** Is the public-information period open? Has the DIA been issued, or the licence granted (opening the window to challenge and to seek suspension)? These openings are time-bound — the challenge deadline is usually **two months** from the act.
- 4. What does it still need that it lacks?** A DIA not issued, a licence not granted, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, local *plataformas* (citizen platforms), national associations (Greenpeace, Ecologistas en Acción, SEO/BirdLife). You're rarely alone.

What this looks like in real life. A community learns a resort is planned on a protected stretch of coast, and the study waves away the coastal law. The five questions yield: a named developer behind it; a site on coastal, protected land (the sharp lever); a public-information period open now; a project still needing its DIA and licence; and a coalition of neighbours and national associations with acción popular. That's the El Algarrobico pattern — the objection now, the coastal-law case ready, and the works to be suspended the moment they start.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in Spain the objections you file become the court's record. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the environmental study, the DIA, the permits and licences, the protected-area management plan (**PORN/PRUG**), the coastal delimitation. The Aarhus rights in Law 27/2006 give you access to environmental information, so demand what isn't public. Then read the study hard for flaws — an understated impact, an ignored alternative, a protected designation brushed over, a coastal line crossed.

Layer two: the ground truth. Dated, located photographs and video of the site, the coast, the habitat — baseline images before any damage most of all — and the testimony of affected neighbours.

Layer three: the map of protections. Lay the project over the coastal easement, the park, the Natura 2000 site, and protected species, so each legal tripwire is visible. Walking in with the study, the DIA, and that map is what makes the authority, the courts, and an association take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The environmental study, the DIA, the permits and licences, the PORN/PRUG, the coastal delimitation** — from the autonomous community and the coastal authority; force out the rest under Law 27/2006 (8A).
- **Municipal planning and the building licence** — from the ayuntamiento.
- **Ownership and financing** — company records, and lender/EU-fund documents.
- **The protections map** — the coastal easement, natural park, Natura 2000, and protected species, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and neighbours' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Spain's *plataformas* have stopped incinerators, mines, and resorts. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the land and coast, a few tireless organisers, and respected local figures.

Form a plataforma. The Spanish vehicle is the citizen platform — a named, organised group that speaks with one voice in the alegaciones, the press, and the streets. Hold meetings where people see the evidence — the map of the project over the coast and the park.

Bring in an association with acción popular — early. A qualifying environmental **association** (national ones like **Greenpeace**, **Ecologistas en Acción**, **SEO/BirdLife**, or a properly constituted local one) has the standing under Law 27/2006 to take the decision to court without proving personal harm. Team up early and hand them your documents.

Build to last. El Algarrobico shows these fights can run for two decades. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES

Law is the community's sharpest lever in Spain, because the acción popular opens the courthouse and the courts genuinely annul unlawful approvals — even if enforcement can lag.

Object First — It Becomes the Court's Record

Everything downstream is stronger if you filed substantive **alegaciones** in the public-information period. Courts review the legality of the decision on the record that was built during the procedure, so your objections there are the raw material of the later challenge.

The Administrative Courts — and the Precautionary Suspension

If the DIA or the licence is unlawful, you challenge it in the **contencioso-administrativo** (administrative) courts, up through the regional **TSJ** to the **Tribunal Supremo**. The challenge deadline is usually **two months** from the act, so move fast. And — crucially — ask at once for a **medida cautelar**, a precautionary suspension of the works while the case runs. This is what stops the bulldozers before the building is up; at El Algarrobico the single most effective order in twenty years was the 2006 precautionary suspension of the works. A win annuls the DIA or licence — real leverage, even where making it stick then takes persistence.

Coastal and Protected-Area Law

Spain's sharpest single grounds are often the **Ley de Costas** (the coastal protection easement, which shields the shoreline) and **protected-area law** — a natural park's management plan (PORN), a Natura 2000 designation, protected species. A project on the coastal easement or inside a protected park is on legally forbidden ground, as El Algarrobico's fifty rulings confirm. These are hard, enforceable protections a court will apply.

The Honest Limits

Straight talk: the acción popular and the courts are real, but litigation is slow; a win annuls a decision but doesn't always demolish a building when a town hall refuses to comply, and enforcement can take years and political pressure (El Algarrobico is the cautionary tale). So use the strong tools — the alegaciones, the precautionary suspension, the coastal and protected-area law — but pair them with the movement and the media, be ready for a long fight, and count a suspension, an annulment, delay, and eventual enforcement as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the study is bad" but *"the DIA ignored the coastal easement and the park's protection — so the licence is unlawful."*

A coastal line becomes a barrier. *"This is within the Ley de Costas protection easement; it can't lawfully be built on."*

Your standing becomes a case. *"As an association with acción popular under Law 27/2006, we will take this to the contencioso courts."*

The harm becomes a public story. *"The coast, the park, the beach our community has always known — for a project the courts keep ruling illegal."*

Match it to the venue: the alegaciones to the authority; the legal flaw and the suspension to the contencioso courts; the human and the coast to the press and the public.

STEP 5: MEDIA STRATEGY

In Spain, publicity is power — El Algarrobico became a national symbol of coastal destruction, and that attention kept the pressure on for two decades. A free press, an engaged public, and a strong movement make the media front central.

Lead with people and place, not procedure. Not "the DIA was procedurally deficient" but "the coast, the park, the beach our community has always known — to be concreted over for a project the courts keep ruling illegal." Use your strongest material: dated photographs, the map of the project over the coast and the park, named neighbours, and any court win banked.

Work several audiences at once. Local and national press build political pressure; the environmental movement amplifies; national broadcasters reach the wider public; and coastal destruction is a story Spain's public feels keenly. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Environmental-information request (to the autonomous community / coastal authority).

Subject: Solicitud de información ambiental (Ley 27/2006) — [proyecto].

"Under Law 27/2006, we, residents of [place], request the environmental study, the DIA, the permits and licences, and the coastal delimitation for [project] at [location]. [Contact.]"

8B — Alegaciones in the public-information period.

Subject: Alegaciones — información pública de [proyecto].

"We, residents of [place], oppose the authorisation of [project]: [it sits within the coastal easement / inside the natural park / on a Natura 2000 site; the study ignores this impact]. We ask that these be addressed and the DIA be unfavourable or the project refused. [Attach evidence.]"

8C — To an association with acción popular (Greenpeace / Ecologistas en Acción / SEO/BirdLife).

Subject: Petición de apoyo y recurso — [proyecto] en [lugar].

"Our community faces [project] on [coastal / protected] land. We've gathered [the study, the DIA, photographs, the protected-area plan] and believe it violates the Ley de Costas and the park's protection. As an association with acción popular under Law 27/2006, we ask you to support us and, if warranted, bring a challenge, working as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (challenge + precautionary suspension).

Subject: Recurso contencioso-administrativo y medida cautelar — [proyecto].

"We instruct you to challenge the [DIA / licence] for [project], issued on [date], in the contencioso-administrativo courts, and to request a precautionary suspension of the works, on the grounds that [it violates the Ley de Costas / the park's protection / the study was defective]. Please act within the two-month deadline. [Attach the DIA, the study and our evidence.]"

8E — To a financier or EU-fund body.

Subject: Riesgo ambiental y legal — [proyecto].

"We understand your institution may be [financing] [project] at [location], which [sits on protected coastal land / faces active legal challenge]. We ask you to weigh this against your own environmental rules. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [coast / park / beach] from [project].

"For generations the people of [place] have valued [the coast / the park] at [location]. Now [project], by [company], threatens to destroy it — on land the law protects. We can provide photographs, documents, a map and interviews. [Contact.]"

8G — To the Defensor del Pueblo / environmental prosecutor.

Subject: Queja — [proyecto] en [lugar].

"We ask you to examine [project], which [breaches the coastal and protected-area law] and whose approval we believe was unlawful. [Attach evidence.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our coast / park / beach]. At El Algarrobico, environmental groups won fifty court rulings that a beach hotel is illegal. With the public-information period, the acción popular, the coastal law, and the movement behind us, we have a real chance. Please join us: object, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for protected and coastal land.** The Ley de Costas easement or a protected park is your sharpest legal lever.
2. **File substantive alegaciones in the public-information period (8B).** They become the court's record.
3. **Request the study and the DIA (8A), and read them for flaws.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **Team up with an association with acción popular and a lawyer fast (8C/8D).** Be ready to seek a precautionary suspension the moment works threaten — within the two-month challenge window.
6. **Form a plataforma and go public (8F).** Spain's movement and press have stopped resorts, mines, and incinerators before.

Even lean, those six use your rights, build the record, protect the deadline, and put an association and a lawyer behind you.

WHEN THE SYSTEM IS TILTED

Spain's tools are real, but the field is often tilted, and you must plan for it.

When a town hall or autonomous community wants the project. Local and regional governments often champion development — the "brick bubble" that gave Spain El Algarrobico. Don't fold: use the coastal and protected-area law, the courts, and the acción popular, keep the movement alive, and make the authority's backing of an unlawful project a public cost.

When a court win isn't enforced. This is the hardest tilt, and El Algarrobico is the lesson: a non-compliant town hall blocked demolition for twenty years. Pair the ruling with sustained pressure, complaints to the Ombudsman and prosecutor, and — as finally happened — escalation to the State and to Europe.

When the process was clean. If there's no legal flaw and no protected line crossed, the courts may not help; then the movement, the local politics, and public opinion carry the fight.

What still works, and it's a lot. The *acción popular* opens the courthouse to associations; the courts genuinely annul unlawful DIAs and licences; the precautionary suspension halts works; and the coastal and protected-area law is hard and enforceable.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Spain has documented problems with urban-planning corruption — the *corrupción urbanística* of the boom years — so this matters.

How to spot it. Licences granted against the law or the technical reports; reclassifications of protected land to suit a developer; a town hall refusing to enforce court rulings; revolving doors between developers and local government; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Fiscalía Anticorrupción** and the environmental prosecutor investigate graft and environmental crime. The **Tribunal de Cuentas** and regional audit bodies examine public money. The **contencioso courts** can annul a tainted licence, and criminal courts have jailed officials over planning corruption. And Spain's **investigative press** has repeatedly exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the prosecutor and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the protected line aims it; organising builds the muscle; the courts and the suspension press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any protected or coastal land; file *alegaciones* in the public-information period; request the study and DIA; photograph the baseline; team up with an association and a lawyer; form a *plataforma*.

In the thick of it (months–years): challenge a flawed DIA or licence in the *contencioso courts* within two months, and seek a precautionary suspension; press the coastal and protected-area grounds; deepen the coalition and the expert critique; open the media front.

The long haul (years): carry the case through the courts; keep the movement and the pressure alive; hold the line for a suspension, an annulment, delay, and — if it comes to it, as at El Algarrobico — enforcement.

FINAL ASSESSMENT

Stopping a destructive project in Spain can be done — environmental groups won some fifty court rulings that a 21-storey beach hotel in a protected park is illegal — and the same story is honest about the price: twenty years of litigation and a town hall that blocked demolition until the State stepped in. Hold both. Spain's tools are real and, in parts, unusually strong: an *acción popular* that puts associations in the courtroom; *contencioso* courts that annul unlawful DIAs and licences; a precautionary suspension that halts works; and hard coastal and protected-area law. And the constraint is real: a court win is often the middle of the fight, not the end, when local authorities won't comply.

Here's the discipline that wins. Find the protected line and the flaw in the study, and pry loose the record under Law 27/2006. File substantive *alegaciones* in the public-information period. Challenge a flawed DIA or licence within two months, and seek a precautionary suspension to halt the works now. Press the coastal and protected-area law with an association's *acción popular* beside you. Form a *plataforma*, carry the story to the public, and be ready to fight for years to enforce a win. Count a suspension, an annulment, delay, and enforcement as wins alongside a clean stop. That's what El Algarrobico's campaigners did — the *acción popular*, the coastal law, and a movement that refused to quit. So can you.